

gage of the settled estates to raise the amount of the outlay, or to authorise the expenditure, for the restoration, of monies which were subject to a trust for re-investment in land; but it appearing that the estate had been benefited to the full amount of certain funds in Court, which had arisen from the sale of part of the settled estates, Kay, J., sanctioned the application of those funds towards recouping the trustee, on the ground that the trustee having *bonâ fide* expended money for building on the estate, under a reasonable expectation that the Court would sanction the expenditure, and having improved the estate to *the full amount [*577] of the funds in Court, might be recouped the amount so expended (a).] If the trust be to make repairs out of the *rents*, and the trustees borrow money to make the repairs, and then repay themselves out of the rents, they will not be allowed the interest on the money borrowed, for the trust was to apply the rents after they had accrued (b).

[12. **Allowances to tenant for life.**—Where trustees of a term are authorised to make improvements on the trust property, and to raise the sums required by mortgaging the hereditaments comprised in the term, or out of the rents, issues, and profits, and subject to the term the property is strictly settled, the tenant for life is entitled to have the amount of income applied by the trustees in permanent improvements raised out of the corpus of the estates (c).

Where there was no power to manage or cultivate the real estate, and a farm was in hand, and no tenant could be found, the Court allowed 1,000*l.* part of the personalty which was held on the same trusts as the realty, to be advanced to the tenant for life, who was one of the trustees, on his bond, he undertaking to expend it in stocking, taking, and cultivating the farm to the satisfaction of his co-trustee (d).]

13. **Land Improvement Act.**—By the Improvement of Land Act, 1864 (e), trustees in the *actual possession or receipt of*

[(a) *Jesse v. Lloyd*, 48 L. T. N. S. 656.]

(b) *Fazakerley v. Culshaw*, 19 W. R. 793.

[(c) *Re Marquess of Bute*, 27 Ch. D. 196.]

[(d) *Re Household*, 27 Ch. D. 553.]

(e) 27 & 28 Vict. c. 114. Extended by 33 & 34 Vict. c. 56, to building and improvement of mansions; [and by 40 & 41 Vict. c. 31, to the construction and erection of reservoirs and